

		Attorney Solomonian contends that the Court denied the Motion to Strike because it was untimely. The record does not support that assertion. At no point during the June 23, 2026 hearing did the Court state, either orally or in its written order, that the Motion to Strike was untimely. To the contrary, the Court heard and considered the motion on its merits, entertained argument from both parties, and thereafter denied the motion. As reflected in the Court's June 23, 2026 order, the Court concluded that the filing of the Motion to Strike constituted a general appearance under Code of Civil Procedure section 1014. The Court further concluded that Code of Civil Procedure section 435(d) did not extend Defendants' time to respond to the Complaint by demurrer. Accordingly, the Court ordered Defendants to file an Answer within five (5) business days. Defendant's characterization of the Court's ruling is inconsistent with both the oral proceedings and the written order. The Court further finds that Defendants have failed to satisfy their burden of establishing entitlement to relief under Code of Civil Procedure section 473(b) by a preponderance of the evidence. Section 473(b) expressly provides: "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted." (Code Civ. Proc., § 473(b).) Defendants failed to attach or lodge a proposed Answer with their motion to set aside the defaults. This omission alone precludes relief under the statute. Even if the procedural defect were disregarded, Defendants have failed to demonstrate mistake, inadvertence, surprise, or excusable neglect. The evidence establishes that Attorney Solomonian had actual notice of the Court's June 23, 2026 order and knowingly elected not to comply with it. Instead, he chose to file a Motion for Reconsideration without seeking any stay of the Court's order. A motion for reconsideration does not automatically stay enforcement of the underlying order or suspend a party's obligation to comply with it. Following the denial of the Motion for Reconsideration on the morning of July 10, 2026, Attorney Solomonian still took no action to file an Answer, seek emergency relief, or otherwise obtain a stay before Plaintiff requested entry of default later that afternoon. The Court finds that this course of conduct was the product of a deliberate litigation decision rather than excusable neglect. Accordingly, Defendants have failed to establish grounds for mandatory or discretionary relief under Code of Civil Procedure section 473(b). Therefore, the Court DENIES the Defendants' Motion to Set Aside Default Judgment. The Court Clerk is ordered to notify the Orange County Sheriff's Department to proceed with the writ of possession and lockout forthwith. The Court Clerk is to provide notice of the Court's ruling.
5	30-2026-01548429 Lu vs. Hatoka	The Court has read and considered the Defendants' Motion to Reopen and Reconsider Judgment (ROA 66)

		The Court takes Judicial Notice of the Stipulation for Entry of Judgment (ROA 53), 5/13/2026 Minute Order (ROA 56), 4/30/2026 Minute Order, 5/6/2026 Minute Order (ROA 48 & 51), and 7/9/2026 Minute Order (ROA 64). California courts strongly favor voluntary settlements and will not set them aside absent a showing of fraud, undue influence, or similar grounds. (<i>Folsom v. Butte County Association of Governments</i> (1982) 32 Cal.3d 668, 676–677.) When a party has not been prevented from knowing or exercising the opportunity to have a day in court or from presenting evidence and argument, the party’s own inability or failure to learn of material facts or the law does not constitute extrinsic mistake allowing the judgment to be vacated. (<i>National Auto & Cas. Ins. Co. v. Superior Court</i> (1986) 184 Cal. App. 3d 948, 960.) Additionally, the moving party seeking to set aside must plead and prove a meritorious case entitling the party to a fair adversary hearing, establishing that if the facts were proven, a different result would be obtained. (<i>Kuehn v. Kuehn</i> (2000) 85 Cal. App. 4th 824, 831.) Ms. Hafoka’s 4/30/2026 Ex Parte Application to continue the original court trial date was granted and set out 13 days later. On 5/13/2026, Ms. Hafoka appeared in Court, all the terms of the Stipulation were read on the record by the Court, and Ms. Hafoka agreed to the terms of the Stipulation. More than two months after the Stipulation for Entry of Judgment, after the Plaintiff filed a declaration of noncompliance with the Stipulation seeking possession of the property, Ms. Hafoka filed a motion to vacate the Stipulation. The Defendant fails to establish fraud, undue influence, or extrinsic mistake. The Court DENIES the Defendant’s Motion to Reopen and Reconsider Judgment. The Court’s ruling on 7/9/2026 Minute Order remains the order of the Court. The Plaintiff is ordered to provide notice of the Court’s ruling.
8	30-2026-01558581 Far West South Coast, Ltd. vs. Platek	The Court has read and considered the Plaintiff’s Motion to Deem Requests for Admission, Set One, Admitted (ROA 89) and Defendant’s Response (ROA 67). The California Supreme Court held, “Subdivision (k) provides that a propounding party who fails to receive a timely response may move for an order that "matters specified in the requests" are deemed admitted. The nonresponding party can avoid the deemed admitted order by serving a verified response before the hearing on the motion. (Ibid.) The failure to do so, however, results in automatic entry of the order. (Ibid.)” (<i>Wilcox v. Birtwhistle</i> (1999) 21 Cal. 4th 973, 978.) Plaintiff filed the Motion to Deem Answers Admitted on July 20, 2026, and Defendant served on the Plaintiff verified responses on July 23, 2026. The Defendant filed responses before the hearing on the motion; therefore, the Court will DENY the Motion to Deem Request for Admissions, Set One, Admitted.